

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Malicious Damage Act, 1812	52 Geo. 3. c. 130.
Malicious Damage (Scotland) Act, 1816...	56 Geo. 3. c. 125.
Riotous Assemblies (Scotland) Act, 1822...	3 Geo. 4. c. 33.
Fatal Accidents Act, 1846	9 & 10 Vict. c. 93.
Army Act	44 & 45 Vict. c. 58.
Public Authorities Protection Act, 1893 ...	56 & 57 Vict. c. 61.
Public Health (Scotland) Act, 1897 ...	60 & 61 Vict. c. 38.
Maritime Conventions Act, 1911 ...	1 & 2 Geo. 5. c. 57.
Air Force Act	7 & 8 Geo. 5.
Law Reform (Miscellaneous Provisions) Act, 1934	24 & 25 Geo. 5. c. 41.
Limitation Act, 1939	2 & 3 Geo. 6. c. 21.
Coal Industry Nationalisation Act, 1946	9 & 10 Geo. 6. c. 59.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Crown Proceedings Act, 1947	10 & 11 Geo. 6. c. 44.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Electricity Act, 1947	10 & 11 Geo. 6. c. 54.
Gas Act, 1948	11 & 12 Geo. 6. c. 67.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Air Corporations Act, 1953	2 & 3 Eliz. 2. c. 7.

CHAPTER 37

An Act to provide for pensions and other superannua-
tion benefits in respect of service as president of
the Industrial Court. [4th June, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Pension for
service as
president of
industrial
court.

9 & 10 Geo. 5.
c. 69.

1.—(1) The Minister of Labour and National Service (herein-
after referred to as “the Minister”) may from time to time make
to the Treasury, as respects any holder of the office of president
of the Industrial Court constituted under the Industrial Courts
Act, 1919, a recommendation that the Treasury shall pay to him
an annual sum by way of superannuation allowance on his
retirement after not less than five years' relevant service:

Provided that no such allowance shall be payable if the person
to whom the recommendation relates (hereinafter referred to as
“the pensioner”) retires before attaining the age of sixty-five

years unless either his appointment has been terminated on the ground that he has become incapable, owing to infirmity of mind or body, of the efficient discharge of his duties or he has resigned his appointment on that ground and the Minister is satisfied by means of a medical certificate both of his incapacity and that it is likely to be permanent.

(2) The said annual sum shall be a sum not exceeding the proportion of the pensioner's last annual salary which in the table set out in the Schedule to this Act corresponds with the number of the pensioner's completed years of relevant service.

(3) In this section the expression "relevant service" means service as president of the Industrial Court or service reckonable for any pension, superannuation or other retiring allowance, or gratuity, being service in any such other capacity under the Crown as may be prescribed by regulations made by the Treasury; and regulations under this subsection—

- (a) may be made generally or subject to specified exceptions or in relation to specified cases or classes of case;
- (b) may provide that in calculating relevant service either the whole of a person's prescribed service of any description shall be taken into account or such part thereof only as may be determined by or under the regulations;
- (c) may make different provision for different cases or classes of case.

(4) The power to make regulations conferred by the last foregoing subsection shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(5) The decision of the Treasury shall be final on any question arising as to—

- (a) the amount of any superannuation allowance under this section, and
- (b) the reckoning of any service for the purpose of calculating such an allowance.

2. Sections two to eight of the Administration of Justice Application of (Pensions) Act, 1950 (which provide for the payment of lump sums on retirement or death and of widows' and children's pensions in the case of persons eligible for pensions for service in any of the capacities listed in the First Schedule to that Act) shall have effect as if—

- (a) the capacity of president of the Industrial Court were listed in the First Schedule to that Act, and

- (b) in relation to that capacity the expression "relevant service" in the said provisions of the said Act of 1950 had the same meaning as in the foregoing section.

Transitional provision.

3. For the purposes of section one of this Act and of sections two to eight of the Administration of Justice (Pensions) Act, 1950, as they apply to the person who is president of the Industrial Court at the commencement of this Act, that person's last annual salary shall if the Treasury so direct be deemed not to exceed such amount as may be specified in the direction.

Benefits to be defrayed out of moneys provided by Parliament.

4. There shall be defrayed out of moneys provided by Parliament—

- (a) the amount of any superannuation allowance under section one of this Act;
- (b) any increase attributable to section two of this Act in the sums payable out of moneys provided by Parliament under paragraph 1 of the Third Schedule to the Administration of Justice (Pensions) Act, 1950 (which paragraph provides for the payment out of such moneys of lump sums and widows' and children's pensions under that Act).

Short title.

5. This Act may be cited as the Superannuation (President of Industrial Court) Act, 1954.

Section 1.

SCHEDULE

COMPUTATION OF MAXIMUM AMOUNT OF PENSION

<i>Years of relevant service</i>	<i>Fraction of salary</i>
5	Ten-fortieths
6	Eleven-fortieths
7	Twelve-fortieths
8	Thirteen-fortieths
9	Fourteen-fortieths
10	Fifteen-fortieths
11	Sixteen-fortieths
12	Seventeen-fortieths
13	Eighteen-fortieths
14	Nineteen-fortieths
15 or more	Twenty-fortieths.

